

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 5.12.140, PERSONS UNDER THE AGE OF TWENTY-ONE (21) YEARS – RESTRICTIONS – PROVISIONS, OF CHAPTER 5.12, ALCOHOLIC LIQUOR AND MALT BEVERAGES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 5.12.140, Persons under the age of twenty-one (21) years – Restrictions – Provisions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, within Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming, is hereby amended as set out in this ordinance. Sections currently existing within Chapter 5.12 not set out or clarified by an *[Editing note: ...]* within this ordinance remain unchanged.

5.12.140 Persons under the age of twenty-one (21) years – Restrictions – Provisions.

A. Except as provided in this section, no **RETAIL LIQUOR** licensee, ~~or permittee~~, employee, server or agent thereof shall knowingly permit any person under the age of twenty-one (21) years to enter or remain in a licensed building:

1. Where alcoholic liquor and malt beverages being sold, dispensed and consumed are the primary source of revenue for the licensee’s ~~or permittee’s~~ business operation unless the licensee ~~or permittee~~ also provides a full-service restaurant, as defined in Wyo. Stat. Section 12-1-101(a)(xiv), operation within the building, and the restaurant is consistently open to the public;

a. If a licensed building contains a separate room designated for the sale of alcoholic liquor and malt beverages for off-premise consumption, commonly referred to as a package store, an underage person may temporarily be allowed within the room but must be accompanied by his or her parent, spouse or legal guardian who is at least twenty-one (21) years of age.

2. Where alcoholic liquor and malt beverages are sold, dispensed and/or consumed in a business establishment that provides adult entertainment, exotic dancing or similar venues;

3. Unless the person is a license ~~or permit~~ holder, pursuant to provisions of Wyo. Stat. Section 12-1-101, *et seq.*, and city code, or

4. Unless the primary purpose of the business operation within the licensed building is operation as a bowling center business and commercially provided food services.

[Editing note: Remainder of existing city code sub-section 5.12.140 (A) is unchanged.]

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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